

why they had been made. That was contrary to the requirement under Art. 12(3) RPBA 2020 that parties must submit their complete case in the statement of grounds of appeal; the patent proprietor had thereby shifted to the opponent and the board the responsibility – properly incumbent on it – to select from the numerous requests one that might ultimately be allowable (see also R 11/08).

In T 412/18, the board indicated that an appeal case in which the substantiation for a particular objection had to be pieced together from parts of the rest of the case that, when read on their own, had no readily discernible link with the issue addressed in the objection was not a complete case within the meaning of Art. 12(3) RPBA 2020. This approach ran counter to the purpose of that provision, namely that the parties had to present a complete case at the start of the proceedings in order to provide the board (and the other parties) with an appeal file that contained every party's complete case and to prevent any tactical procedural abuse (see also T 1488/08, referring to the then applicable Art. 12(2) RPBA 2007). Consequently, the board did not take the inventive-step objection into consideration.

In T 706/17, the board held that a sweeping reference to the opposition case was insufficient for establishing why the contested decision should be reversed. Under Art. 108 EPC, R 99(2) EPC and Art. 12(3) RPBA 2020 or Art. 12(2) RPBA 2007, the appellant (opponent) had to present a complete case in its statement of grounds of appeal that allowed the board and the other parties to understand why the contested decision should be reversed without having to make any further investigations of their own. The appellant's inventive-step objections were therefore disregarded on appeal pursuant to Art. 12(4) RPBA 2007.

In R 8/16 the Enlarged Board rejected the argument that the board should have known, and therefore should have considered, the petitioner's arguments from the file as presented before the opposition division. The board had no obligation to peruse the whole file of the first-instance proceedings. It is the duty of the parties to raise issues again in the appeal proceedings, to the extent necessary, as set out in Art. 12(1) and (2) RPBA 2007. In T 16/14, the board explained that the words "to the extent necessary" (see R 8/16) did not imply that a board had to consider the submissions from the first-instance proceedings. In its view, they meant that any submission not relevant for the issues to be dealt with on appeal did not have to be presented again. It concluded that a mere reference to the case made at first instance did not meet the requirements of Art. 12(2) RPBA 2007. Consequently, the appellant's (opponent's) arguments in relation to documents E1/E1a and E2/E2a were not to be considered in the appeal proceedings pursuant to Art. 12(4) RPBA 2007.

See also chapter V.A.2.6.3g) "Complete case within the meaning of Art. 12(3) RPBA 2020", in relation to admissibility of the appeal.

3.2.3 Opposition appeal proceedings

a) Admissibility of opposition

The admissibility of the opposition, being an indispensable procedural requirement for any substantive examination of the opposition submissions, must be checked *ex officio* in every phase, including any ensuing appeal proceedings (T 240/99).

b) The notice of appeal

In T 226/09 the board decided that the request in the notice of appeal for the patent to be maintained on the basis of the first auxiliary request did not limit the subject of the appeal within the meaning of R 99(1)(c) EPC for the appellant-proprietor and therefore did not rule out a broader request in the statement of grounds.

c) Unopposed subject-matter not reviewed

No part of a patent's subject-matter (e.g. individual claims) not opposed within the nine-month time limit can be reviewed in either opposition or appeal proceedings. The opponent's statement under R 76(2)(c) EPC (R 55(c) EPC 1973) establishes the extent to which the patent is contested and thus the formal competence of the opposition division or board of appeal. The only exception to this principle concerns an opposition explicitly directed **only** to the subject-matter of an independent claim. In such a case, subject-matter covered by claims which depend on the independent claim can also be examined as to patentability (see e.g. G 9/91, OJ 1993, 408; see also T 323/94).

According to T 896/90, detailed grounds for opposition for a single granted independent claim do not mean that only that part of the patent is being contested, if the opponent has indicated that he wants the whole patent revoked. However, in T 737/92 (in which only arguments against process claims and not against composition claims were submitted) the board found that an opposition was filed only to the extent that it was substantiated (see also T 318/01).

Where two opponents lodge appeals contesting different sets of claims and one subsequently withdraws its appeal, it becomes a party as of right under Art. 107 EPC 1973 and the other opponent becomes the sole appellant. The scope of the appeal is defined by the latter's request, which the non-appealing party may not exceed and which binds the board (T 233/93).

In T 653/02 it was held that a board has no competence to examine a newly formulated claim derived by combination of granted claim 1 with a sub-claim not being within the extent to which the patent had been opposed; this did not fall within the exception allowed by G 9/91 (OJ 1993, 408). In T 646/02 the board found that the case at issue differed from the facts before the board in T 653/02, in that the subject-matter not opposed was described in the patent and was part of the independent claim as granted but was not itself the subject-matter of a dependent claim of the patent as granted. Whether or not the board had competence to examine depended, however, only on whether the patent was clearly

restricted to a subject-matter not covered by the notice of opposition. This was done in T. 646/02 by restriction to the subject-matter of the **deliberately excluded dependent claim** and, in the case at issue, by restriction to **deliberately excluded variants** of the invention. The board held that the exception in G. 9/91 was not therefore applicable in the case before it either, since it was applicable only to subject-matter implicitly covered by the notice of opposition and not to those explicitly excluded.

In T. 364/18 the appellant (opponent) expressly requested in the notice of opposition revocation of claims 1-5, 8, 9, 11, 15-17, 19 and 20. This request was repeated on appeal. The board saw in the above an express statement that the patent was opposed and the decision was appealed only in as far as the claims mentioned were concerned, which thus defined, respectively, the extent of opposition according to R. 76(2)(c) EPC, and the extent to which decision was to be amended according to R. 99(2) EPC. In accordance with the principle of ne ultra petita the board saw itself limited to examining the patent only for the claims opposed. The auxiliary request, however, was directed to the subject-matter of unopposed granted claims 6, 7, 10, 12 to 14 and 18, in the form of independent claims 1 to 7 which combined the features of respective ones of these claims with granted claim 1. As the auxiliary request was directed to those unopposed subject-matters, and the board had no power to examine such subject-matter, the patent was to be maintained in this limited form.

d) Dependent claims

In line with G. 9/91, a patent proprietor could, in appeal proceedings, amend an uncontested **dependent** claim in accordance with R. 57a EPC 1973 (T. 711/04).

In T. 2094/12 granted claim 5, which was dependent on granted claim 1, was not opposed. Claim 1 as upheld by the opposition division combined granted claim 1 with the (non-optional) subject matter of granted claim 5. The subject matter of claim 1 of the main request was therefore based on "dependent subject matters" as referred to in G. 9/91. According to this point: "...even if the opposition is explicitly directed only to the subject-matter of an independent claim of a European patent, subject-matters covered by claims which are depending on such an independent claim may also be examined as to patentability, if the independent claim falls in opposition or appeal proceedings, provided their validity is prima facie in doubt on the basis of already available information (cf. T. 293/88, OJ 1992, 220). Such dependent subject-matters have to be considered as being implicitly covered by the statement under R. 55(c) EPC 1973 (now R. 76(2)(c) EPC)....". Thus in the case in hand because the opposition notice was explicitly directed to granted claim 1, it was implicitly also directed to the subject matter of granted claim 5, now claim 1 of the main request. The opposition division was thus also competent to in considering prima facie validity of the patent.

e) Appeal by patentee against revocation

Where the patentee appeals the revocation of the patent, the board is not bound by the findings of the opposition division; the whole case, including those claims considered novel by the opposition division, and objected to by the non-appealing opponent, must be

considered (**T. 396/89**). Furthermore, if the patent proprietor as the sole appellant in the opposition appeal proceedings makes amendments to the version of the patent adopted in accordance with an interlocutory decision of the opposition division, the board is both competent and obliged ex officio to examine those amendments from both a formal and a substantive point of view, even if the respondents expressly agree to them (**T. 1098/01**). Similarly, where the patent proprietor was respondent on appeal against the decision of the opposition division as a whole, it was the board's power and duty to decide for itself on each issue addressed and it was not bound by any finding of that decision (in the respondent's favour) (**T. 36/02**).

f) Removal of references in dependent claims

Claims which remain unchanged after the removal of the references in dependent claims need not be examined in opposition appeal proceedings to see if they contain grounds for opposition raised for the first time in those proceedings, unless the patentee consents (**T. 968/92**).

g) Abandonment of subject-matter

See also chapter V.A.5.12.14 "Reverting to broader claims, especially those as granted".

Established case law of the boards of appeal has it that previous limitations of the claims cannot be treated as an express abandonment of parts of the patent but are to be regarded merely as attempts to come up with a wording delimiting the patent in such a way as to overcome objections. The patent proprietor is free at any time to revert to broader claims or to the version as granted, provided this does not amount to an abuse of procedural law (**T. 43/16**; see **T. 123/85**, OJ 1989, 336; **T. 296/87**, OJ 1990, 195; **T. 900/94**; **T. 1018/02**; **T. 934/02**; **T. 699/00**; **T. 794/02**). Nonetheless, the admissibility of any such request on appeal is subject to the provisions of Art. 12(4) RPBA 2020 (see **T. 28/10**, **T. 1135/15**).

According to **T. 123/85** (OJ 1989, 336), the EPC makes no provision for patentees to surrender their patents during opposition proceedings (referring to **T. 73/84**, OJ 1985, 241; **T. 186/84**, OJ 1986, 79) nor surrender part of the patent so as to limit it. Thus a request withdrawn during opposition proceedings may nonetheless be considered in any ensuing opposition appeal proceedings.

In **T. 1018/02**, it was stated that amendments of a European patent had to comply with R. 57a EPC 1973 (R. 80 EPC). According to this rule, amendments were possible provided that they were occasioned by grounds for opposition. However, this did not mean that, if a patent proprietor in the first instance chose to defend a main request which was limited in scope compared with the claims as granted, then he could not during the appeal proceedings go beyond the limits of that request. In accordance with **T. 407/02**, a patent proprietor who had only defended his patent in limited form before an opposition division, was in principle allowed on appeal to return to a broader version or even to the patent as granted. Following **T. 407/02**, the board in **T. 1188/09** pointed out that opponents must therefore always be prepared for the possibility that a patent proprietor whose patent has been revoked by the opposition division will seek its restoration as granted on appeal.

According to the board in T 1188/09, T 1018/02 expressly followed this approach, which was again upheld in T 386/04, where it was explained that supposedly contrary decisions had always been concerned with circumstances in which the amendment to the claim amounted to an abuse of the procedure.

According to T 386/04, an appellant (proprietor), whose patent has been revoked, is entitled to seek maintenance of the patent as granted even though its main request before the opposition division had only been the maintenance of the patent in more limited form. The exception to this is where to allow the proprietor to revert to the amended claims would amount to an abuse of procedure. According to the board, this long-standing principle is not contradicted by decisions T 528/93 or T 840/93 (OJ 1996, 335), which are concerned with new claims raising new issues, and is not contrary to the statement by the Enlarged Board of Appeal in decision G 9/91 (OJ 1993, 408), concerning the purpose of an appeal. In T 727/15 the board referring to T 386/04 admitted the main request into the proceedings (reversion to claims as granted after maintenance in more restricted form). In the case in hand such reversion did not constitute an abuse of procedure.

The board in T 28/10 extensively discussed T 123/85 (OJ 1989, 336) and the case law based on it (including T 386/04) holding that it did not follow from this case law that a patent proprietor must be able to revert to a broader version of the claims which it had not initially defended in the opposition proceedings, and thereby amend its case, without being subject to any procedural restrictions. In the case at issue, the patentee had sought to introduce into the appeal proceedings claims which had not been the basis of discussion before the opposition division. The board found that the legal situation had changed since T 123/85 and Art. 12(4) RPBA 2007 was now the relevant legal provision rather than case law based on that decision.

In T 2558/16, the board held that just because a patent proprietor had dropped its request for rejection of the opposition, or replaced it with other requests, in the first-instance proceedings did not mean that it could not go back on appeal to defending the version of the patent as granted. That being said, the patent proprietor was not entitled to do so unconditionally; it had to be requested and it was at the board's discretion to grant such a request. In exercising its discretion under Art. 12(4) RPBA 2007, the board had to consider the circumstances of the individual case before it (which, in the case in hand, meant especially the events in the opposition proceedings).

h) Fresh ground for opposition on appeal

Grounds for opposition submitted for the first time on appeal may be considered only with the patent proprietor's consent. If the patentee has not consented to a fresh ground's introduction into the proceedings, the board's decision must not deal with it in substance at all and may mention only that it has been raised (see G 10/91 and G 9/91, OJ 1993, 420; G 1/95, OJ 1996, 615). In G 7/95 (OJ 1996, 626) the Enlarged Board of Appeal held that lack of novelty and lack of inventive step, albeit both falling under Art. 100(a) EPC, were different legal grounds for opposition.